THE NATIONAL COMPANY LAW TRIBUNAL

BENCH V

AT NEW DELHI

CA (CAA)-98/230/232/ND/2021

Under Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF:

SCHEME OF AMALGAMATION

OF

BHUJADARI VINCOM PRIVATE LIMITED

...(Transferor Company 1/ Applicant No 1)

AND

ROSEBUD TRADELINK PRIVATE LIMITED

...(Transferor Company 2/ Applicant No 2)

AND

UNICURE INDIA LIMITED

...(Transferee Company / Applicant No 3)

Order Reserved On: 01.12.2021

Order pronounced on: 25.01.2022

CORAM:

SH. ABNI RANJAN KUMAR SINHA,HON'BLE MEMBER(J)

SH. AVINASH K. SRIVASTAVA,HON'BLE MEMBER (T)

PRESENT

For the Applicant :CA Vijay Kumar

For the Respondent: Adv Puneet Rai, Senior Standing Counsel for IT, Adv. Adeeba Mujahid, Junior Counsel for IT along with Adv. Sanjana Mishra

MEMO Of PARTIES

In the Matter of Companies Act, 2013

Section 230 to 232

In the Matter of:

BHUJADARI VINCOM PRIVATE LIMITED

Company incorporated under the Companies Act, 1956
Having Registered Office at:
C-677, New Friends Colony
New Delhi-110025
CIN: **U51101DL2010PTC329104**

(Transferor Company 1/ Applicant No 1)

AND

ROSEBUD TRADELINK PRIVATE LIMITED

Company incorporated under the Companies Act, 1956
Having Registered Office at:
C-677, New Friends Colony
New Delhi-110025
CIN: **U52390DL2010PTC332118**

(Transferor Company 2/ Applicant No 2)

WITH

UNICURE INDIA LIMITED

Company incorporated under the Companies Act, 1956
Having its registered office at:
C-677, New Friends Colony
New Delhi-110025
CIN: **U74899DL1980PLC010642**

(Transferee Company / Applicant No 3)

ORDER

PER SH. AVINASH K. SRIVASTAVA,MEMBER (TECHNICAL)

1. This application has been jointly filed by the Applicant Companies under Sections 230 and 232 of the Companies Act, 2013read with the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 and the National Company Law Tribunal Rules, 2016,duly supported by separate affidavits of the Applicant Companies, for seeking appropriate directions for dispensing with the holding/convening of the meetings of the respective shareholders and creditors of all the Applicant companies for approval of the proposed Scheme of Amalgamation as contemplated between the Applicant companies. The said Scheme of Amalgamation (hereinafter referred to as the "Scheme") has been placed on record along with the joint application.

2. It is represented that the registered office of all the applicant companies is situated in New Delhi and therefore the subject matter of this joint application falls within the Jurisdiction of this Bench.

3. Transferor Company 1was incorporated under the Companies Act, 1956 on 10.05.2010 in the name and style of **"BHUJADARI VINCOM PRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. **U51101DL2010PTC329104**.Its authorized share capital is Rs. 3,00,000/-. while its issued, subscribed, and paid-up capital is Rs. 2,85,000/-.

4. Transferor Company 2 was incorporated under the Companies Act, 1956 on 08.02.2010 in the name and style of **"ROSEBUD TRADELINKPRIVATE LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. **U52390DL2010PTC332118** Its authorized share capital is Rs. 32,00,000/-while its issued, subscribed, and paid-up capital is Rs. 31,34,500/-.

5. Transferee Company was incorporated under the Companies Act, 1956 on 25th July 2013 in the name and style of **"UNICURE INDIA LIMITED"** with the office of Registrar of Companies, NCT of Delhi and Haryana, under the CIN. **U74899DL1980PLC010642.** Its authorized share capital is Rs. 120,00,00,000/- while its issued, subscribed, and paid-up capital is Rs. 7,47,70,000/-.

6. Now with intent of aligning the businesses undertaken by the Transferor Companies and the Transferee Company, it is proposed by way of this scheme to Amalgamate Transferor Companies into and with the Transferee Company in accordance with the terms thereof. The amalgamation of the Transferor Companies with the Transferee Company would inter alia have the following benefits:

- Pooling of resources and infrastructure of the entities to their common advantage, resulting in a more productive utilization of the resources, costs and operational efficiencies, faster and effective decision making and its implementation which would be beneficial for all stakeholders.
- Integrate, rationalize and streamline the management and administrative structure of the merged business and achieve cost saving
- Avoid duplication of regulatory compliances and statutory filings with various government departments
- Greater economies of scale, reduction in overheads and other expenses
- Greater efficiency in cash management of the Transferee Entity and unfettered access to cash flow generated by the combined business which can be deployed more efficiently to fund organic and inorganic growth opportunities, to maximize shareholder value
- Facilitate inter transfer of resources and costs and optimum utilization of Assets

- Synchronizing of efforts to achieve uniform corporate policy
- To reflect the consolidated net worth of these companies in one balance sheet

- In view of the aforesaid, the Board of Directors of the Transferor Companies and the Transferee Company have considered and proposed the amalgamation of the entire undertaking and business of the Transferor Companies with the Transferee Company order to benefit the stakeholders of all the three companies.

7. It is submitted that the Transferor Company 1 has 3Equity Shareholders, 2 unsecured creditors**(Amt. due to them Rs.43,284/-)** and NIL secured creditors. The certificate of Auditor in respect of list of Equity Shareholders and their Consent Affidavit for the proposed Amalgamation has also been placed on record **(Annexure 2 and 3 (colly)**.The certificate of Auditor in respect of list of Secured as well as Unsecured Creditors and their Consent Affidavit for the proposed Amalgamation has also been placed on record **(Annexure 2 and 3 (colly)**. In respect of shareholder as well as Unsecured Creditors, prayer has been made for issuance of directions for dispensing the convening of the meeting of the shareholders.

8. The Transferor Company 2 has 2 Equity Shareholders and do not have any secured creditor. It has 3 unsecured creditors**(Amt. due to them Rs. 13,39,895/-).** The certificate of Auditors in respect of list of Equity Shareholders and their Consent Affidavit consenting the proposed amalgamation has also been placed on record**(Annexure 2 & 3 (colly).** The certificate of Auditors in respect of list of Secured and Unsecured Creditors and their Consent Affidavit consenting the proposed amalgamation has also been placed on record **(Annexure 4, 5 & 6 (colly).** In respect of shareholders as well as unsecured creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

9. The Transferee Company has 28 Equity Shareholders and 2secured creditors and 712 unsecured creditors. The certificate of Auditors in respect of list of Equity Shareholders and their Consent Affidavit consenting the proposed amalgamation has also been placed on record **(Annexure 2 & 3 (colly)).** The certificate of Auditors in respect of list of Secured and Unsecured Creditors and their Consent Affidavit of Secured Creditors consenting the proposed amalgamation has also been placed on record **(Annexure 4, 5 & 6 (colly).** In respect of shareholders and secured creditors, prayer has been made for issuance of directions for dispensing their respective meetings.

10. It has been seen from the documents filed by Transferee Company, that NOC from the Unsecured Creditors has not been obtained. On perusal of the Order dated **01.12.2021,** t has been submitted by the Applicants that "so far as unsecured creditors of the Transferee Company are concerned, the order may be passed to convene the meeting".

11. It is further submitted that the board of directors of all the applicant companies vide separate Board meetings, held on 01.04.2021 respectively have unanimously approved the proposed Scheme of Amalgamation and copies of such board resolutions passed therehave been placed on record by the companies.

12. All the applicants have filed their respective Memoranda and Articles of Associations. The applicants have also filed their latest audited financial statements for the year ending 31.03.2021. As per the order dated 22.09.2021, Applicants were directed to file the Matching list of creditors as on 31.03.21 and consent letters in the same sequence. The same has been complied with and has been placed on record.

13. All the companies have submitted that no proceedings are pending under the provisions of the Companies Act against any of the

applicant company. In this regard, a separate affidavit in accordance to Sec 230(2)(a) has been placed on record.

14. Further, it has been stated in the application that the Scheme is not prejudicial to the interests of the shareholders, and creditors of the applicant companies. The Scheme will be beneficial to all the applicant companies and their respective shareholders, and creditors.

15. As per the scheme of Amalgamation (Para 2.1.4 of the Scheme), **Effective Date of scheme of Amalgamation** means the date on which authenticated/certified copies of the order of NCLT sanctioning the scheme has been filed with the concerned Registrar of Companies NCT of Delhi and Haryana and **Appointed date** shall be 01.04.2021 or such other date as may be approved by NCLT or Other Competent Authority.

16. The certificates of statutory auditors of all the applicant companies confirming that the accounting treatment in the scheme is in compliance of and in conformity with Section 133 of the Companies Act, 2013 have been placed on record **Annexure A-7**.

17. Taking into consideration the application filed jointly by the Applicant Companies the following directions are issued

A. In relation to Transferor Company 1

i. **With respect to Equity Shareholders:**
Meeting of the 3 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**
As there is no secured creditor in the Transferor Company 1, the requirement of convening meeting of secured creditors does not arise.

iii. **With respect to unsecured creditors:**

Meeting of 2 unsecured creditors in the Transferor Company 1 is directed to be dispensed pursuant to the power under section 230(9) of the Companies Act, 2013 as 100 % written consent has been obtained by way of affidavits for the proposed merger and has been placed on record.

B. In relation to Transferor Company 2

i. **With respect to Equity Shareholders:**

Meeting of the 2 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

As there is no secured creditor in the Transferor Company 2, the requirement of convening meeting of secured creditors does not arise.

iii. **With respect to unsecured creditors:**

Meeting of 3 unsecured creditors in the Transferor Company 2 is directed to be dispensed pursuant to the power under section 230(9) of the Companies Act, 2013 as 100 % written consent has been obtained by way of affidavits for the proposed merger and has been placed on record.

C. In relation to Transferee Company

i. **With respect to Equity Shareholders:**

Meeting of the 28 equity shareholders is directed to be dispensed with as the 100% written consent has been obtained by way of affidavits for the proposed merger.

ii. **With respect to secured creditors:**

Meeting of 2 secured creditors in the Transferee Company is directed to be dispensed as pursuant to the power under section 230(9) of the Companies Act, 2013. 100 % written consent (No Objection Certificate) has been obtained by way of affidavits for the proposed merger and has been placed on record.

iii. **With respect to unsecured creditors:**

The meeting of 712 unsecured Creditors of Transferee Company is directed to be held through Video Conferencing/Other Audio Visuals Means within 45 days of this order. The Quorum of the meeting shall be 75% in value.

D. In case the quorum as noted above for the aforesaid meeting is not present at the meeting, then the meeting shall be adjourned by half an hour, thereafter the persons present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum, the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting is filled with the Registered Office of the Applicant Companies at least 48 hours before the meetings. The Chairperson and Alternate Chairperson appointed herein along with the Scrutinizer shall ensure that the proxy registers are properly maintained.

E. **Karan Malhotra, Advocate(9971304540)** is appointed as the Chairperson, **Pankaj Kumar Singhal, Advocate (9871357353)** is appointed as Alternate Chairman and **Vijay Kumar Sharma, FCS (9910792221)** Practicing Company Secretary as Scrutinizer for the aforementioned meetings in terms of the direction issued herein.

F. The fee of the Chairperson for the aforesaid meetings shall be Rs. 75000/-, The fee of the Alternate Chairperson shall be Rs. 75000/- and the fee of the Scrutinizer shall be Rs. 50000/- in addition to meeting their incidental expenses.

G. The individual notices of the said meetings shall be sent as required and prescribed in terms of Section 230(3) of the Companies Act, 2013 through registered post or speed post or through courier or through e-mail, 30 days in advance before the scheduled date of the meeting, indicating the date, place and time as aforesaid, together with a copy of scheme of amalgamation and a copy of explanatory statement. A

part from that notice and other documents shall also be placed on the website of the respective Applicant Companies. The prescribed form of proxy shall be sent along with and in addition to the above documents, any other documents as may be prescribed under the Act.

H. That the Applicant Companies shall publish advertisement with a gap of at least 30 days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in Delhi Editions of "Business Standard" English and "Hindustan" Hindi newspapers stating that the Copies of the Scheme, the Explanatory Statement required to be furnish pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provide free of charge at the Registered Office of the Applicant Companies.

I. Voting shall be allowed on the proposed Scheme by voting in person or by proxy or through electronic means or through show of hands as may be applicable to the respective companies under the Act and rules framed there under. The Chairperson shall be responsible to report the result of the meeting to this Tribunal within two weeks of the conclusion of the meeting with regard to the proposed scheme.

J. Notice of this Meeting shall also be served on the following authorities:-

- **a.** The Central Government through the office of the Regional Director (Northern Region), Ministry of Corporate Affairs, B-2 Wing, 2nd Floor, Pt. Deen Dayal Antodaya Bhawan, CGO Complex, Lodhi Road, New Delhi-110 003;
- **b.** The Registrar of Companies, NCT of Delhi, Ministry of Corporate Affairs, 4th Floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;
- **c.** The Official Liquidator, Ministry of Corporate Affairs, 8th Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110001;

d. The Income Tax Department, through the Nodal Office- DCIT (High Court Cell), Room No. 428 & 429, Lawyer's Chambers, Block No. 1, Delhi High Court, New Delhi. The notices to Income Tax authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed;

e. Securities and Exchange Board of India (SEBI)- Plot No.C4-A, 'G' Block Bandra-Kurla Complex, Bandra (East), Mumbai - 400051, Maharashtra;

f. National Stock Exchange of India Ltd. (NSE)- Exchange Plaza, C-1, Block G, Bandra Kurla Complex, Bandra (E) Mumbai – 400 051;

g. Bombay Stock Exchange Ltd. (BSE)- Phiroze Jeejeebhoy Towers, Dalal Street, Mumbai- 400001;

h. Such other Sectoral Regulatory Authorities who may have significant bearing on the operation of the Applicant Companies.

K. All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

L. Accordingly, in terms of the above order, CA (CAA) 63 (ND) of 2021 is allowed.

-Sd-
25/1/2022

(AVINASH K. SRIVASTAVA)
Member (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
Member (J)